

25VECV07032 25VECV07032

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-07-31

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Case Number: 25VECV07032 Hearing Date: July 31, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

ATMAN REYES and DARYA REYES,

Plaintiffs,

vs.

SUSAN NAIMI, and DOES 1 to 10, inclusive,

Defendant.

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CASE NO.: 25VECV07032

ORDER GRANTING DEFENDANT'S MOTION TO SET ASIDE DEFAULT

I. BACKGROUND

Plaintiffs Atman Reyes and Darya Reyes (jointly, "Plaintiffs") filed this action against Susan Naimi ("Defendant"), alleging Defendant breached their contract by failing to return the full security deposit of \$28,000.00 after Plaintiffs vacated the rental premises.

Defendant moves to set aside default.

II. PROCEDURAL HISTORY

On December 10, 2025, Plaintiff filed a Complaint alleging (1) Breach of Contract, (2) Common Counts, and (3) Violation of California Civil Code § 1950.5.

On March 9, 2026, default was entered against Defendant.

On March 13, 2026, the Court denied Defendant's Ex Parte Application for an Order to Set Aside the Default and set the underlying instant Motion for hearing.

On March 17, 2026, Defendant filed the instant Motion.

On May 22, 2026, the Court denied Defendant's Motion to Set Aside Default.

On July 13, 2026, Defendant filed the instant Motion to Set Aside Default and Notice of Intention to Introduce Oral Testimony at the Hearing.

As of July 28, 2026, no opposition has been filed.

III. LEGAL STANDARD

A. Discretionary or Mandatory Relief Pursuant to Section 473(b)

“The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken...” (Code Civ. Proc. § 473(b).) [1]

Code of Civil Procedure § 473(b) “provides for both discretionary and mandatory relief. [Citation.]” (Pagnini v. Union Bank, N.A. (2018) 28 Cal.App.5th 298, 302.)

For discretionary relief, “[t]he court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect. Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted, and shall be made within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken.” (Code Civ. Proc. § 473(b).)

A moving party need only establish “mistake, inadvertence, surprise, or excusable neglect” by a preponderance of the evidence. (Luz v. Lopes (1960) 55 Cal.2d 54, 62.) Excusable neglect exists where counsel or the party acted as a reasonably prudent person would under the circumstances. (See Hearn v. Howard (2009) 177 Cal.App.4th 1193, 1206; See also Zamora v. Clayborn Contracting Group, Inc. (2002) 28 Cal.4th 249, 258.) Attorney negligence is not a basis for discretionary relief under Code of Civil Procedure § 473. (See Pazderka v. Caballeros Dimas Alang, Inc. (1998) 62 Cal.App.4th 658, 672; see also Garcia v. Hejmadi (1997) 58 Cal.App.4th 674, 682.)

An application for discretionary or mandatory relief must be made no more than six months after entry of the judgment, dismissal, order, or other proceeding from which relief is sought. (See Code Civ. Proc. § 473(b); see also English v. IKON Bus. Solutions (2001) 94 Cal.App.4th 130, 143.)

B. Void Judgment or Order – Code of Civil Procedure § 473(d)

Code of Civil Procedure § 473(d) provides, “[t]he court may... on motion of either party after notice to the other party, set aside any void judgment or order.” (Code Civ. Proc. § 473(d); see also Zisk v. City of Roseville (1976) 56 Cal.App.3d 41, 47; accord Bastajian v. Brown (1941) 19 Cal.2d 209, 216; Baird v. Smith (1932) 216 Cal. 408, 411.) Once brought to the trial court’s attention, it is error to refuse to set a void order or judgment aside. (See Lovato v. Santa Fe Int’l Corp. (1984) 151 Cal.App.3d 549, 554-555.) “[I]nclusion of the word ‘may’ in the language of section 473, subdivision (d) makes it clear that a trial court retains discretion to grant or deny a motion to set aside a void judgment [or order]. However, the trial court ‘has no statutory power under section 473, subdivision (d) to set aside a judgment [or order] that is not void....’” (Pittman v. Beck Park Apartments Ltd. (2018) 20 Cal.App.5th 1009, 1020 [internal citations omitted].)

In determining whether an order is void for purposes of § 473(d), a distinction is made between orders that are void on the face of the record and orders that appear valid on their face but are shown to be invalid by extrinsic evidence. (See id.)

C. Lack of Actual Notice - Code of Civil Procedure § 473.5

Code of Civil Procedure § 473.5 permits the Court to vacate a default when service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against him. (See Code Civ. Proc. § 473.5(a).) “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the

earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service... of a written notice that the default or default judgment has been entered.” (Id.)

The phrase actual notice means genuine knowledge and does not include constructive or imputed notice to the client. (See *Tunis v. Barrow* (1986) 184 Cal.App.3d 1069, 1077.) “A defendant seeking vacation of a default judgment entered against him must further show that his lack of actual notice in time to defend the action was not caused by his inexcusable neglect or avoidance of service.” (Id. at 1077-1078, citing Code Civ. Proc. § 473.5(c).) Additionally, “the party shall serve and file with the notice a copy of the answer, motion, or other pleading proposed to be filed in the action.” (Code Civ. Proc. § 473.5(b).)

Moreover, it is well established that the court is “not required to accept...self-serving evidence contradicting the process server’s declaration.” (*Rodriguez v. Nam Min Cho* (2015) 236 Cal.App.4th 742, 751.)

IV. ANALYSIS

Defendant moves to set aside default on grounds that the default is void because of improper service, excusable neglect, and lack of actual notice.

A. Void Order

A judgment may be void for lack of improper service of summons. A motion for relief from a judgment valid on its face, but void for improper service, must be brought with a “reasonable” time after the default judgment. (See *California Capital Ins. Co. v. Hoehn* (2024) 17 Cal.5th 207, 212, 225-226 [disapproving prior authority that applied 2-year time limit to § 473(d) motions to vacate].) In contrast, there is no time limit on a motion for relief under § 473 where it is clear from the face of the record that the judgment should not have been entered. (See *Plotitsa v. Superior Ct. (Kadri)* (1983) 140 Cal.App.3d 755, 761.)

First, Defendant argues Plaintiff’s process server did not exercise reasonable diligence in attempting to personally serve Defendant. (See Mot. at 5:26-6:7.) Defendant argues the process server did not attempt service during the permitted hours for accessing the gated community and made no attempt to serve Defendant at her place of business. (Id.) Second, Defendant argues substitute service was defective because the process server mailed the summons and complaint to Defendant’s address, at 25511 Prada De Azul, which is different from the address where the security guard was served. (See id., at 8:3-13.) Defendant’s counsel attests the Oaks of Calabasas Security is located at 25050 Parkway Calabasas, Calabasas, CA 91302. (See Declaration of Haleh Naimi filed July 13, 2026 (“H. Naimi Decl.”), ¶ 17, Ex. 10.) Defendant’s counsel attests the assistant manager of the Oaks of Calabasas Homeowners’ Association (“HOA”), Ms. Zborovsky, informed her that the security dropped the documents off at her desk. (See id., ¶ 9.) Defendant’s counsel also attests she spoke to the security guard who was served but he was not cooperative in submitting a declaration. (See id., ¶ 16, Ex. 9.) Defendant was also unable to obtain a declaration from Ms. Zborovsky.[2] (See H. Naimi Decl., ¶ 15, Ex. 8.) Defendant attaches a copy of her proposed Answer as required. (See Declaration of Susan Naimi filed July 13, 2026 (“S. Naimi Decl.”), ¶ 13, Ex. C.)

Where access is refused by a security guard at a gated community, substitute service may be made on the guard or other security personnel assigned to control access to the community or dwelling. (See Code Civ. Proc. § 415.21(b); *Bein v. Brechtel-Jochim Group, Inc.* (1992) 6 Cal.App.4th 1387, 1393.) Previously, the Court found service was proper, as the proof of service indicates a security guard was served at 25511 Prada De Azul and the documents were mailed to the same address. (See Proof of Service filed March 9, 2026.) However, with this Motion, Defendant submits evidence showing the security guard would have been served at the Oaks of Calabasas Security. Though Defendant does not submit evidence confirming this fact, it is reasonable to find that the security guard would have been served at the Oaks of Calabasas Security location since the process served was denied entry into the gated community where Defendant resides at 25511 Prada De Azul. Thus, it appears the process server did not comply with § 415.20 by mailing the copies to the same address where the documents were left. (See Code Civ. Proc. § 415.20.) Plaintiff does not submit an opposition contesting Defendant’s position. Accordingly, because service was improper, relief from default is proper pursuant to § 473(d).

The Court will grant the Motion on this basis. The Court will also consider if Defendant is entitled to set default aside pursuant to § 473.5.

B. Lack of Actual Notice

Code of Procedure § 473.5 is designed to provide relief where there has been proper service of summons (e.g., by substitute service or by publication) but defendant nevertheless did not find out about the action in time to defend. Typically, these are cases in which service was made by publication. (See *Randall v. Randall* (1928) 203 Cal. 462, 464-465.) A defendant is entitled to relief under § 473.5 if defendant has not received actual notice of the proceedings. Imputed or constructive notice is not “actual” notice. (See *Rosenthal v. Garner* (1983) 142 Cal.App.3d 891, 895.)

Defendant also argues default should be set aside on grounds she did not receive actual notice of this action. Defendant attests she did not receive notice of this action until February 3, 2026, when she received an email from Ms. Zborovsky, informing her that she had documents to pick up. (See S. Naimi Decl., ¶ 4.) Defendant attests her counsel picked up the documents from Ms. Zborovsky, who also informed her that security had placed the documents on her desk. (See id., ¶ 6.) Additionally, Defendant attests she provided Plaintiff with her preferred address for receiving mail as early as September 16, 2025. (See id., ¶ 15, Ex. A.) Defendant attests she did not receive a call from security advising her that a process server attempted to enter the gated community to serve her. (See id., ¶ 17.) She also attests she was travelling out of state and did not return until late January 2026. (See id., ¶ 14.) Defendant attests when she returned from her travels any documents she received would have been discarded with a month’s worth of marketing mail she receives at her residence. (See id., ¶ 16.) Defendant attests she does not recall receiving any certified mail documents. (See id., ¶ 15.) Finally, Defendant attests “[m]y failure to receive notice of the lawsuit was not caused by my inexcusable neglect or avoidance of service.” (Id., ¶ 17.)

Even assuming the Court’s findings and conclusions above regarding whether Plaintiff’s process server properly performed substitute service are incorrect, the Court finds Defendant has shown she is entitled to set aside default pursuant to Code of Civil Procedure § 473.5. Defendant’s declaration shows she did not review the documents mailed to her residence, as she receives important mail at a post office box and customarily discards mail delivered to her residence. Further, Defendant shows neither the security guard nor Ms. Zborovsky informed her of the documents earlier than February 3, 2026. Defendant also confirms her lack of actual notice was not caused by inexcusable neglect or avoidance of service. Rather, it seems to have been caused by the abject incompetence of the HOA’s employees, all of whom could clearly use a brush up about their responsibilities to residents vis a vis accepting service of process on behalf of their residents. Their deficiencies are further amplified by their baffling lack of cooperation with Defendant’s counsel in providing supporting declarations in connection with this Motion. Accordingly, the Court finds Defendant has also shown she is entitled to set aside default pursuant to § 473.5.

The Court GRANTS Defendant’s Motion to Set Aside Default.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Defendant’s Motion to Set Aside Default. Defendant is ordered to file the Answer attached to her Motion on or before August 5, 2026.

The Court continues the Case Management Conference to December 3, 2026, at 8:30 a.m.

IT IS SO ORDERED.

DATED: July 31, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] While the lack of a sworn declaration from anyone associated with the HOA would technically render counsel's statements hearsay, the Court will nevertheless consider it given Plaintiff has not opposed the Motion.